

24NNCV02967 24NNCV02967

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Case Number: 24NNCV02967 Hearing Date: July 7, 2026 Dept: T

Rachel Wolf vs. Carmi V. Gallo

Pitchess Motion

Moving Party: Plaintiff Rachel Wolf

Responding Party: Non-party Los Angeles Police Department

Tentative Ruling: Deny

BACKGROUND

On May 18, 2026, Plaintiff Rachel Wolf, in pro per ("Plaintiff") filed the instant motion for discovery of peace officer personnel records of Los Angeles Police Department ("LAPD") Officer Daniel S. McComas. Non-party LAPD opposes, and Plaintiff replies.

ANALYSIS

Penal Code section 832.7(a) provides, in relevant part, as follows: "Except as provided in subdivision (b), the personnel records of peace officers and custodial officers and records maintained by a state or local agency pursuant to Section 832.5, or information obtained from these records, are confidential and shall not be disclosed in any criminal or civil proceeding except by discovery pursuant to Sections 1043 and 1046 of the Evidence Code." "Good cause for discovery of peace officer personnel records under the statutory scheme exists when the party seeking the discovery shows the "materiality" of the information to the subject matter of the pending litigation and states upon "reasonable belief" that the agency has the type of information sought." (Riske v. Superior Court (2016) 6 Cal.App.5th 647, 655.) In considering the papers, including Plaintiff's declaration and supporting exhibits, the Court finds that Plaintiff failed to sufficiently demonstrate a threshold showing of good cause for the requested discovery. Thus, as good cause has not been shown, the motion is denied.

RULING

Plaintiff Rachel Wolf's Pitchess Motion is DENIED.